

**Tentative Rulings and Resolution Review Hearings**  
**August 24, 2026**  
**Department 63**

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website ([www.shasta.courts.ca.gov](http://www.shasta.courts.ca.gov)) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

**\*\*\*IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.\*\*\***

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

**To appear through WebEx, please follow these instructions:**

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2482 635 4223. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to addressing the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

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**8:30 a.m. – Law & Motion**

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**ALLEN VS. SHRANER, ET AL.**

**CASE NUMBER: 25CV-0206889**

**Tentative Ruling on Motion to Deem Requests for Admission Admitted and Compel Response to Discovery:** Defendants Michael J. Schraner and Janet Schraner seek an order deeming the truth of the matters specified in Defendants' Requests for Admission, Set One to be admitted by Plaintiff Michael D. Allen, compelling verified responses to Form Interrogatories, Set Two, and monetary sanctions. Despite being properly noticed, Plaintiff did not oppose the motion.

When a party fails to respond to Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). A party has thirty days after service to respond to Form Interrogatories. CCP § 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP § 2030.290(a).

Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been

provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Despite not being required to do so, Defendants' counsel sent a letter to Plaintiff attempting to meet and confer on June 26, 2026.

Defendants have provided evidence that Plaintiff was served by mail on May 20, 2026 with Defendants' Form Interrogatories, Set Two and Requests for Admission, Set One. It is now more than thirty days since Plaintiff was served and Plaintiff has not responded to the propounded discovery. The Court finds that there is good cause justifying the discovery sought by Defendants. The Court notes that Form Interrogatories, Set Two only included Item 17.1, which seeks information about each Request for Admission. Deeming the Requests for Admission admitted renders a response to 17.1 moot.

Sanctions. CCP § 2030.290(c) only provides for sanctions when an unsuccessful opposition is made, however, the Court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery even when no opposition was filed. CRC 3.1348. Monetary sanctions are mandatory when a party fails to timely respond to Requests for Admission. CCP § 2033.280(c). Defendant seeks \$1,710 in monetary sanctions which is comprised of a \$60 motion fee, four hours of attorney time for the motion, and 1.5 hours of attorney time for Plaintiff failing to attend the Mandatory Settlement Conference on June 8, 2026. There is no legal basis for the Court to award the 1.5 hours requested for the Mandatory Settlement Conference. The Court will award four hours for the discovery motion and \$60 for the motion fee. Counsel requests the rate of \$300 per hour which the Court finds to be reasonable. Monetary sanctions are awarded to Defendants in the amount of \$1,260.

The motion is **GRANTED**. Plaintiff is deemed to have admitted as true each of the items contained in Defendants' Request for Admissions, Set One. Because the Requests for Admission have been deemed admitted, there is no need for a response to Form Interrogatories, Set Two. Monetary sanctions are awarded to Defendants in the amount of \$1,260. Plaintiff provided a proposed Order, however, the proposed Order does not contain the text of the Requests for Admission being deemed admitted. Defendant shall provide a proposed Order that includes the text of Requests for Admission, Set One.

**BAMFORD, ET AL. VS. BURNEY WATER DISTRICT**  
**CASE NUMBER: 24CV-0204809**

**Tentative Ruling on Order to Show Cause Re: Sanctions:** On July 30, 2026, the Court issued an Order to Show Cause Re: Sanctions (OSC) to Guardian ad Litem Lavon Bamford for failure to appear at the July 29, 2026 hearing. The Court's intent was to issue an Order to Show Cause Re: Termination of Lavon Bamford as the Guardian ad Litem for Kira Bamford and Klearwater Bamford for failure to participate in the action. However, due to a clerical error, the Order to Show Cause Re: Sanctions issued. The Order to Show Cause Re: Sanctions is **DISCHARGED**.

The Court will issue an Order to Show Cause Re: Termination as Guardian ad Litem to Lavon Bamford. Hearing on the Order to Show Cause Re: Termination will be on **Monday, October 12, 2026 at 8:30 a.m. in Department 63**. The clerk is directed to issue the Order to Show Cause Re: Termination and serve counsel for Plaintiffs and Defendant as well as Lavon Bamford directly. Plaintiffs' counsel is reminded that should Lavon Bamford be terminated as the Guardian ad Litem, Plaintiffs' counsel will need to find a suitable replacement and submit applications for both Kira Bamford and Klearwater Bamford.

**IN RE: CLAREY**  
**CASE NUMBER: 26CV-0210037**

**Tentative Ruling on Petition for Change of Name:** Petitioner seeks to change the last name of her minor daughter. The Certificate of Publication was filed on June 2, 2026. When a petition to change the name of a minor is brought by one parent only, the non-petitioning parent must be personally served with the Order to Show